

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RANDY WHITE

Plaintiff,

-against-

Index No.

SUMMONS

THE CITY OF NEW YORK, P.O. JONATHAN BAEZ,
UNDERCOVER POLICE OFFICER THIRTEEN,
POLICE OFFICERS JOHN DOES 1-7,

Defendant(s).

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Plaintiff resides at: 6046 Randy Lane, Ellenwood, Ga., 30294.

Dated: February 18, 2020



By: Robert Marinelli, Esq.
Attorney for Plaintiff
Law Office of Robert Marinelli,
305 Broadway, Ste. 1001
New York, New York 10007
(t) (212) 822-1427
(f) (646) 619-4212

TO: Defendants' Address:
James E. Johnson
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
RANDY WHITE,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, P.O. JONATHAN BAEZ,
UNDERCOVER POLICE OFFICER THIRTEEN,
POLICE OFFICERS JOHN DOES 1-7,

INDEX NO.

Defendants.
----- X

PRELIMINARY STATEMENT

1. This is an action for a civil rights action in which the plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. On October 20, 2017, Randy White (“plaintiff”) was taken into falsely arrested for allegedly selling drugs to an undercover police officer in Brooklyn on three separate occasions. These sales allegedly occurred in February and March of 2017. Mr. White was falsely arrested, maliciously prosecuted, denied the constitutional right to a fair trial and subject to additional violations of his civil rights until all charges against him were dismissed on October 1, 2018.

2. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorneys’ fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

3. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the County of Kings. Venue is also proper pursuant to 28 U.S.C. § 1391(b) because a substantial portion of the acts in question in this lawsuit took place in this District.

PARTIES

5. Plaintiff is a resident of the State of Georgia.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. P.O. Jonathan Baez ("Baez") and Undercover Police Officer Thirteen (UC13") is a member of the NYPD's Gang Unit Brooklyn South, were involved in the investigation, arrest and prosecution of plaintiff and are sued in their individual and official capacity.

8. Police Officers John Does 1-7 are members of the NYPD's who were involved in the investigation, arrest and prosecution of plaintiff. John Does 1-7 are sued in their individual and official capacities.

9. Police Officers Jane Does 1-2 are members of the NYPD's Brooklyn South Narcotics Division who were involved in the arrest and search of plaintiff on January 19, 2006. Jane Does 1-2 are sued in their individual and official capacities.

STATEMENT OF FACTS

10. For the period between February 13, 2017 through March 2, 2017 plaintiff was a resident of the state of Georgia and remained in the state of Georgia. During this period, plaintiff neither lived in, nor visited Kings County.

11. Nevertheless, defendants, including Baez and UC13, claimed to have purchased drugs from plaintiff at the address of 3222 Bayview Ave., Brooklyn, N.Y.

12. As a result, on October 20, 2017, plaintiff was arrested in Georgia based on these allegations. Plaintiff remained in the Georgia jail system for approximately twenty days, at which point he was transported to New York for Arraignment. Bail was set and plaintiff was held for approximately 50 days on Rikers Island.

13. In acquiring the warrant for plaintiff's arrest, defendants, including Baez and UC13 met with a prosecutor employed by the New York County District Attorney's Office.

14. Defendants, including Baez and UC13 with malice, misrepresented to the prosecutor that plaintiff had possessed and sold illegal narcotics.

15. As a result of the aforesaid misrepresentation, the New York County District Attorney's Office filed felony charges against plaintiff.

16. On October 1, 2018, the criminal charges filed against plaintiff were dismissed upon motion of the District Attorney.

17. As a result of defendants' actions, plaintiff experienced physical injuries to his wrists and lower back, pain, emotional distress, fear, embarrassment, humiliation, discomfort, loss of liberty for over 24 hours, and damage to reputation.

**FALSE ARREST AGAINST P.O. JONATHAN
BAEZ, UNDERCOVER OFFICER THIRTEEN,
JOHN DOES 1-7**

18. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

19. Defendants arrested plaintiff without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

20. Defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

21. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

22. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**MALICIOUS PROSECUTION AGAINST P.O.
JONATHAN BAEZ, UNDERCOVER
OFFICER THIRTEEN, JOHN DOES 1-7**

23. Defendant repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

24. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of plaintiff's constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

25. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

26. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**DENIAL OF CONSTITUTIONAL RIGHT TO A
FAIR TRIAL AGAINST P.O. JONATHAN
BAEZ, UNDERCOVER OFFICER THIRTEEN,
JOHN DOES 1-7**

27. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

28. The individual defendants created false evidence against Plaintiff.

29. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

30. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

22. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the

individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**FAILURE TO INTERVENE AGAINST P.O.
JONATHAN BAEZ, UNDERCOVER
OFFICER THIRTEEN, JOHN DOES 1-7**

23. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

24. Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

25. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth and Fourteenth Amendments.

26. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**FEDERAL CLAIMS AGAINST THE CITY OF
NEW YORK**

31. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-30 as if fully set forth herein.

32. The City of New York directly caused the constitutional violations suffered by plaintiff.

33. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the

City's own observations, that the individual defendants are unfit, ill-tempered officers who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

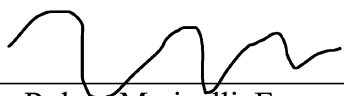
34. In addition to the above, the City of New York, at all relevant times, maintained a policy, practice and custom of illegally strip searching detainees in an illegal-nonprivate manner in City jails.

35. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: February 18, 2020
New York, NY



By: Robert Marinelli, Esq.
Attorney for Plaintiff
Law Office of Robert Marinelli,
305 Broadway, Ste. 1001
New York, New York 10007
(212) 822-1427